

SENATE CHAMBER

STATE OF OKLAHOMA

DISPOSITION

☒ FLOOR AMENDMENT

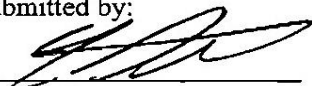
No. 1

☐ COMMITTEE AMENDMENT

(Date)

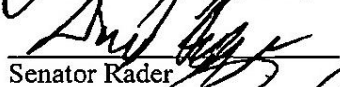
I move to amend House Joint Resolution No. 1077 by substituting the attached floor substitute (Request #4018) for the title, enacting clause, and entire body of the measure.

Submitted by:


Senator Paxton

I hereby grant permission for the floor substitute to be adopted.

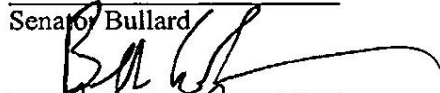

Senator Daniels (required)

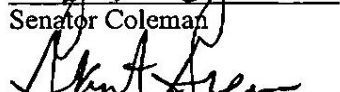

Senator Rader

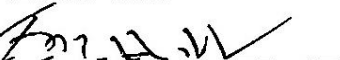

Senator Bergstrom

Senator Boren

Senator Bullard


Senator Coleman


Senator Green


Senator Hall

Senator Hamilton

Senator Paxton, President Pro Tempore

Senator Hicks

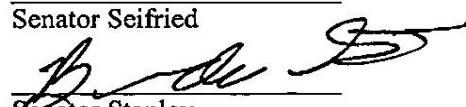

Senator Howard


Senator Jeck

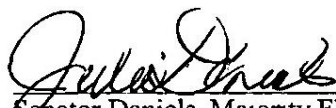
Senator Murdock

Senator Rosino

Senator Seifried


Senator Stanley

Senator Thompson


Senator Daniels, Majority Floor
Leader

Note: Rules committee majority requires nine (9) members' signatures.

Paxton-DC-FS-HJR1077

5/13/2026 12:44 PM

(Floor Amendments Only)

Date and Time Filed: 5-14-26

8:05am 

☐ Untimely

☐ Amendment Cycle Extended

☐ Secondary Amendment

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

FLOOR SUBSTITUTE
FOR ENGROSSED
HOUSE JOINT
RESOLUTION NO. 1077

By: Caldwell (Trey), Kane,
Hill, Moore, Sterling,
Manger, and Pae of the
House

and

Paxton of the Senate

FLOOR SUBSTITUTE

A Joint Resolution directing the Secretary of State to refer to the people for their approval or rejection a proposed amendment to Section 2 of Article XXV-A of the Oklahoma Constitution; clarifying certain Medicaid coverage requirement; removing prohibition on imposing certain eligibility restrictions; directing the Secretary of State to refer to the people for their approval or rejection a proposed amendment to repeal Sections 1, 2, 3, and 4 of Article XXV-A of the Oklahoma Constitution, which relate to Medicaid expansion; making repealers contingent upon certain federal action; ordering a legislative referendum; defining terms; requiring state to provide certain medical assistance; requiring Oklahoma Health Care Authority to maximize certain federal funding; making provisions contingent upon certain federal action; providing ballot title; providing for codification; and directing filing.

1 BE IT RESOLVED BY THE HOUSE OF REPRESENTATIVES AND THE SENATE OF THE
2 2ND SESSION OF THE 60TH OKLAHOMA LEGISLATURE:

3 SECTION 1. The Secretary of State shall refer to the people for
4 their approval or rejection, as and in the manner provided by law, a
5 proposed amendment to Section 2 of Article XXV-A of the Oklahoma
6 Constitution to read as follows:

7 Section 2. ~~A.~~ In addition to those otherwise eligible for
8 medical assistance under Oklahoma's Medicaid program, the State
9 shall provide medical assistance under Oklahoma's Medicaid program
10 to Low Income Adults including, but not limited to, Low Income
11 Adults who receive medical assistance through health care facilities
12 for which the state receives a federal medical assistance percentage
13 (FMAP) of one hundred percent (100%) under federal law.

14 ~~B. No greater or additional burdens or restrictions on~~
15 ~~eligibility or enrollment shall be imposed on persons eligible for~~
16 ~~medical assistance pursuant to this Article than on any other~~
17 ~~population eligible for medical assistance under Oklahoma's Medicaid~~
18 ~~program.~~

19 SECTION 2. The Secretary of State shall refer to the people for
20 their approval or rejection, as and in the manner provided by law, a
21 proposed amendment to repeal Sections 1, 2, 3, and 4 of Article XXV-
22 A of the Oklahoma Constitution. Such repeal will only occur if the
23 federal medical assistance percentage (FMAP) established under 42
24 U.S.C., Section 1396d(y) is reduced below ninety percent (90%).

1 SECTION 3. Pursuant to Section 3 of Article V of the Oklahoma
2 Constitution, there is hereby ordered the following legislative
3 referendum which shall be filed with the Secretary of State and
4 addressed to the Governor of the state, who shall submit the same to
5 the people for their approval or rejection at the next General
6 Election.

7 SECTION 4. NEW LAW A new section of law to be codified
8 in the Oklahoma Statutes as Section 1011.26 of Title 56, unless
9 there is created a duplication in numbering, reads as follows:

10 A. As used in this section:

11 1. "Low-income adults" refers to those individuals over
12 eighteen (18) years of age and under sixty-five (65) years of age
13 whose income does not exceed one hundred thirty-three percent (133%)
14 of the federal poverty level, as described by and using the income
15 methodology provided in the federal Medicaid statute at 42 U.S.C.,
16 Section 1396a(a)(10)(A)(i)(VIII), and who meet applicable
17 nonfinancial eligibility conditions for Medicaid under 42 C.F.R.,
18 Part 435, Subpart E;

19 2. "Medical assistance" means payment of part or all of the
20 cost of the care and services, or the care and services themselves,
21 or both, as provided in the federal Medicaid statute, 42 U.S.C.,
22 Section 1396 et seq.; and
23
24

1 3. "Oklahoma Health Care Authority" refers to the single state
2 agency responsible for administering the state Medicaid program
3 pursuant to 42 U.S.C., Section 1396a(a)(5).

4 B. In addition to those otherwise eligible for medical
5 assistance under the state Medicaid program, the state shall provide
6 medical assistance under the state Medicaid program to low-income
7 adults including, but not limited to, low-income adults who receive
8 medical assistance through health care facilities for which the
9 state receives a federal medical assistance percentage (FMAP) of one
10 hundred percent (100%) under federal law.

11 C. The Oklahoma Health Care Authority shall take all actions
12 necessary to maximize federal financial participation in funding
13 medical assistance pursuant to this section.

14 D. The provisions of this section shall only become effective
15 if the FMAP established under 42 U.S.C., Section 1396d(y) is reduced
16 below ninety percent (90%).

17 SECTION 5. The proposed Constitutional amendment as set forth
18 in SECTION 2 of this resolution and the statutory provisions as set
19 forth in SECTION 4 of this resolution shall only become effective if
20 the federal medical assistance percentage (FMAP) established under
21 42 U.S.C., Section 1396d(y) is reduced below ninety percent (90%).

22 SECTION 6. The Ballot Title for the proposed Constitutional
23 amendments as set forth in SECTIONS 1 and 2 of this resolution and
24

1 the legislative referendum as ordered in SECTION 3 and as set forth
2 in SECTION 4 of this resolution shall be in the following form:

3 BALLOT TITLE

4 Legislative Referendum No. _____ State Question No. _____

5 THE GIST OF THE PROPOSITION IS AS FOLLOWS:

6 This measure amends Section 2 of Article 25-A of the Oklahoma
7 Constitution. It would specify that the state must provide
8 Medicaid coverage to Low Income Adults who receive care at
9 health care facilities for which the state receives a 100%
10 federal match, along with all other Low Income Adults. It would
11 also remove the prohibition against enacting additional
12 restrictions on Medicaid eligibility. Additionally, if federal
13 funding for the Medicaid expansion population drops below 90%,
14 this measure will repeal Sections 1, 2, 3, and 4 of Article 25-A
15 of the Oklahoma Constitution and will enact substantially the
16 same language related to Medicaid expansion from the repealed
17 constitutional provisions into the Oklahoma Statutes. The
18 statutes could be amended, repealed, or otherwise modified by
19 the Legislature pursuant to the same procedures that allow
20 enactment of laws during any regular or extraordinary session of
21 the Legislature.

22 SHALL THE PROPOSAL BE APPROVED?

23 FOR THE PROPOSAL — YES _____

24 AGAINST THE PROPOSAL — NO _____

SECTION 7. The Chief Clerk of the House of Representatives shall, immediately after the passage of this resolution, prepare and file one copy thereof, including the Ballot Title set forth in SECTION 6 hereof, with the Secretary of State and one copy with the Attorney General.

60-2-4018 DC 5/14/2026 8:14:49 AM